



CHAPTER cxxii.

An Act to confirm a Provisional Order of the Local Government Board relating to Cardiff. A.D. 1904.

[22nd July 1904.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Order Confirmation (No. 15) Act 1904. Short title.

A.D. 1904.

SCHEDULE.

BOROUGH OF CARDIFF.

*Cardiff
Order.*

Provisional Order for altering the Cardiff Corporation Act 1894.

To the Mayor Aldermen and Burgesses of the Borough of Cardiff;—

And to all others whom it may concern.

WHEREAS the Borough of Cardiff (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority;

38 & 39 Vict.
c. clxxxvii.
57 & 58 Vict.
c. clxi.

And whereas the unrepealed provisions of the Cardiff Improvement Act 1875 and the Cardiff Corporation Act 1894 (each of which Local Acts is herein-after referred to as the Act of the year in which it was passed) are in force in the Borough;

And whereas by Section 68 of the Act of 1875 the Corporation were empowered to make byelaws for fixing and regulating the days and hours on and during which any pleasure ground or any part of a pleasure ground belonging to the Borough might be open or shut and by Section 36 of the Act of 1894 the said section was altered as therein mentioned subject to the proviso that the part of the park then about to be formed or laid out on the land formerly known as Canton Common between Leckwith Road and Sloper Road and the part of Roath Park situate between Penylan Road and Alder Road should be always open to the free use of the public;

And whereas by Sections 18 and 40 of the Act of 1894 the Corporation were empowered to make certain street improvements including a widening of the southern side of Quay Street between Westgate Street and Saint Mary Street and to acquire for the purposes of that improvement certain lands delineated on the deposited plans referred to in that Act;

And whereas parts of the said lands acquired for the purposes of the street improvement as aforesaid are not required for those purposes and it is proposed that those parts (herein-after referred to as "the surplus lands") shall be appropriated and used for other purposes as herein-after mentioned:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the

[4 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Order Confirmation (No. 15) Act, 1904.

date of the Act of Parliament confirming this Order the Act of 1894 shall be altered as is herein-after provided that is to say :—

A.D. 1904.

Cardiff
Order.

Art. I. Section 36 of the Act of 1894 shall have effect as if the words " from one hour after sunrise or from the hour of six in the forenoon " (whichever time may be the later) until one hour after sunset in any day " were inserted at the end of the proviso to that section.

Altering Local
Act as to
period within
which pleasure
grounds may
be open to
public.

Art. II. Notwithstanding anything in the Act of 1894 or in any enactment incorporated therewith the Corporation may by agreement with any person whose rights or interests in pursuance of any such enactment may otherwise be prejudicially affected appropriate and use the surplus lands for the purposes of the provision of a fire brigade station for the Borough and of any works appliances or conveniences which may be necessary in connexion therewith.

Surplus lands
may be used
for fire brigade
station pur-
poses.

Art. III. This Order may be cited as the Cardiff Order 1904.

Short title.

Given under the Seal of Office of the Local Government Board this
Thirteenth day of May One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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